

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
LIONELL TOWNSEND,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER STEPHEN
SAMUEL, POLICE OFFICER MICHAEL RUBEIS,
AND JOHN/JANE DOE POLICE OFFICERS
AND/OR DETECTIVES #s 1-10,

Defendants.

Index no.: _____/2016

Purchased: May 2, 2016

Plaintiff designates BRONX
County as the place of trial

The basis of venue is CPLR § 504(3)

Plaintiff resides:
1150 Intervale Avenue, Apt. 3E
Bronx, NY 10459**SUMMONS**----- X
To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
May 2, 2016To: City of New York
Law Department
100 Church Street
New York, New York 10007Stephen Samuel
Michael Rubeis
41st Precinct
1035 Longwood Avenue
Bronx, NY, 10459-5204Eric E. Rothstein
Eric E. Rothstein
Rothstein Law PLLC
Attorneys for Plaintiff
11 Park Place, Suite 1100
New York, New York 10007
(212) 577-9797*Notice: The nature of this action is negligence**The relief sought is monetary damages*

Upon failure to appear, judgment will be taken against you by default with interest from May 23, 2015, and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
LIONELL TOWNSEND,

Index No.: _____/2016

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, POLICE OFFICER STEPHEN
SAMUEL, POLICE OFFICER MICHAEL RUBEIS,
AND JOHN/JANE DOE POLICE OFFICERS
AND/OR DETECTIVES #s 1-10,

Defendants.
----- X

Plaintiff, LIONELL TOWNSEND, by his attorneys, ROTHSTEIN LAW PLLC,
respectfully alleges as follows upon information and belief:

1. A notice of claim setting forth the time and place where the injuries sustained by the plaintiff were sustained, was duly filed with the office of the Comptroller of New York City or the Law Department in accordance with Section 50(e) of the General Municipal Law on or about August 17, 2015, within 90 days after the causes of action herein accrued and before the commencement of this action; that the provisions of Section 50(h) of the General Municipal Law have been complied with; that more than 30 days have elapsed since the presentation of the aforesaid claim and demand and defendant has refused or neglected to make any adjustment thereof; and this action is commenced within one year and 90 days after the causes of action herein accrued.

2. Plaintiff, LIONELL TOWNSEND, is a resident the State of New York.

3. Defendant, CITY OF NEW YORK, is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

4. Defendant, CITY OF NEW YORK, has established and maintains The New York

City Police Department which is an agency of the defendant, CITY OF NEW YORK.

5. Upon information and belief, defendant, STEPHEN SAMUEL, is a resident of the State of New York.

6. At all times relevant, defendant, CITY OF NEW YORK, employed defendant, STEPHEN SAMUEL.

7. At all times relevant, The New York City Police Department, employed defendant, STEPHEN SAMUEL.

8. At all times relevant, defendant, STEPHEN SAMUEL, was a Police Officer with defendant, THE CITY OF NEW YORK.

9. At all times relevant, defendant, STEPHEN SAMUEL, was a Police Officer with The New York City Police Department.

10. At all times relevant, defendant, STEPHEN SAMUEL, was acting under the color of State Law.

11. At all times relevant, defendant, STEPHEN SAMUEL, was acting both in his individual and official capacity as an employee of defendant, CITY OF NEW YORK, and/or The New York City Police Department.

12. At all times relevant, defendant, STEPHEN SAMUEL, was acting within the scope of his employment with defendant, CITY OF NEW YORK, and/or The New York City Police Department.

13. Upon information and belief, defendant, MICHAEL RUBEIS, is a resident of the State of New York.

14. At all times relevant, defendant, CITY OF NEW YORK, employed defendant, MICHAEL RUBEIS.

15. At all times relevant, The New York City Police Department, employed defendant, MICHAEL RUBEIS.

16. At all times relevant, defendant, MICHAEL RUBEIS, was a Police Officer with defendant, THE CITY OF NEW YORK.

17. At all times relevant, defendant, MICHAEL RUBEIS, was a Police Officer with The New York City Police Department.

18. At all times relevant, defendant, MICHAEL RUBEIS, was acting under the color of State Law.

19. At all times relevant, defendant, MICHAEL RUBEIS, was acting both in his individual and official capacity as an employee of defendant, CITY OF NEW YORK, and/or The New York City Police Department.

20. At all times relevant, defendant, MICHAEL RUBEIS, was acting within the scope of his employment with defendant, CITY OF NEW YORK, and/or The New York City Police Department.

21. Upon information and belief, defendants, JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, are residents of the State of New York.

22. At all times relevant, defendant, CITY OF NEW YORK, employed defendants, JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10.

23. At all times relevant, The New York City Police Department, employed defendants, JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10.

24. At all times relevant, defendants, JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, were either Police Officers or Detectives with defendant, THE CITY OF NEW YORK.

25. At all times relevant, defendants, JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, were either Police Officers or Detectives with The New York City Police Department.

26. At all times relevant, defendants, JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, were acting under the color of State Law.

27. At all times relevant, defendants, JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, were acting both their individual and official capacity as an employee of defendant, CITY OF NEW YORK, and/or The New York City Police Department.

28. At all times relevant, defendants, JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, were acting within the scope of their employment with defendant, CITY OF NEW YORK, and/or The New York City Police Department.

29. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individually named defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as an agent, servant and employee of defendant, CITY OF NEW YORK, and/or The New York City Police Department.

30. Defendant, CITY OF NEW YORK, is vicariously liable for the acts and omissions of its employees including defendants, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10.

31. On May 23, 2015, plaintiff was inside the 41st Police Precinct, 1035 Longwood Avenue. Bronx, NY 10459, when employees of defendant, THE CITY OF NEW YORK, members of The New York City Police Department, defendants, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, their agents, servants and employees, failed to offer plaintiff assistance walking down the stairs

despite the fact that he was handcuffed and they knew that he walked with braces and a cane and then pushed him down the stairs while handcuffed, causing him to suffer physical injury.

32. On May 23, 2015, plaintiff was inside the 41st Police Precinct, 1035 Longwood Avenue, Bronx, NY 10459, when employees of defendant, THE CITY OF NEW YORK, members of The New York City Police Department, defendants, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, their agents, servants and employees, pushed and/or forced plaintiff down the stairs while handcuffed, causing him to suffer physical injury.

33. This action falls within one or more of the exceptions of CPLR § 1602, including but not limited to CPLR §§ 1602(5), (7) and (11).

AS AND FOR A FIRST CAUSE OF ACTION
(Excessive Force)

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

35. On May 23, 2015, defendants, CITY OF NEW YORK, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, their agents, servants and employees, acting in concert or separately, subjected plaintiff to the excessive use of force while defendants were acting under color of state law.

36. Defendants' use of force was not justified and was done willfully and maliciously.

37. Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for plaintiff's rights.

38. Said use of excessive force deprived plaintiff of the constitutional right to bodily security and liberty under the Eighth and Fourteenth amendments to the United States Constitution and amounted to an unreasonable physical seizure of plaintiff under the fourth

amendment to the United States Constitution.

39. As a result of the forgoing, plaintiff demands judgment against defendants in a sum of money that exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

40. The conduct of defendants warrants punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION
(Battery)

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

42. On or about May 23, 2015, defendants, CITY OF NEW YORK, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, their agents, servants and employees including but not limited to defendants, JOHN DOE POLICE OFFICERS AND/OR DETECTIVES #S 1-5, acting in concert or separately, placed hands on plaintiff causing him physical injury without just justification.

43. As a result of the forgoing, plaintiff demands judgment against defendants in a sum of money that exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

44. The conduct of defendants warrants punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
(Negligence)

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

46. That commencing on or about May 23, 2015, defendants, CITY OF NEW YORK, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, their agents, servants and employees, acting in concert or separately, negligently and carelessly performed their duties in that they failed to exercise such

care in the performance of their duties as a reasonably prudent employees would have under similar circumstances.

47. As a result of defendants' negligence, plaintiff was caused to suffer personal injuries.

48. As a result of the defendants' negligence, plaintiff demands judgment against defendants in a sum of money that exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

49. The conduct of defendants warrants punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION
(Violation of Civil Rights)

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

51. That the actions of defendants heretofore described constitute assault, battery, use of excessive force and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of the plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, Fourth, Eighth, and Fourteenth Amendments and the Constitution of the State of New York.

52. That the conduct and actions of defendants, CITY OF NEW YORK, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, their agents, servants and employees, acting in concert or separately, acting under color of State law, in using excessive force upon plaintiff, were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of the plaintiff's Constitutional rights as

guaranteed under 42 U.S.C. §1983, the United States Constitution, Fourth and Fourteenth Amendments and the Constitution of the State of New York.

53. Defendants, CITY OF NEW YORK, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, actions/omission were undertaken under color of law and would not have existed but for said defendants, CITY OF NEW YORK, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, their agents, servants and employees, acting in concert or separately, using their official power.

54. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, and humiliation.

55. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money, which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

56. The conduct of defendants warrants punitive damages.

AS AND FOR A FIFTH CAUSE OF ACTION
(Americans With Disabilities Act and the Rehabilitation Act)

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

58. Plaintiff is a qualified individual with a disability, was denied safe transportation due to his disability, and defendant, CITY OF NEW YORK, is a public entity that receives federal financial assistance.

59. When members of the New York City Police Department were transporting plaintiff from the Precinct it was necessary for plaintiff to walk down a set of stairs.

60. Defendants knew that claimant, who was rear handcuffed, walked with braces and a cane and refused his request for assistance and failed to take sufficient steps to prevent his fall.

61. Defendants, CITY OF NEW YORK, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, acting in their individual and official capacities, violated plaintiff's rights under the Americans With Disabilities Act, and the Rehabilitation Act.

62. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money, which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

63. The conduct of defendants warrants punitive damages.

AS AND FOR A SIXTH CAUSE OF ACTION
(Delayed Arraignment/False Arrest/False Imprisonment)

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

65. Defendant, THE CITY OF NEW YORK, and The New York City Police Department, had the duty to ensure that plaintiff was brought before a local criminal court without unnecessary delay and no later than 24 hours after his arrest pursuant to *People v. Roundtree*, 77 N.Y.2d 422 (1991), which interprets Criminal Procedure Law § 140.20(1).

66. Defendant, THE CITY OF NEW YORK, and The New York City Police Department, failed to bring plaintiff before a local criminal court within 24 hours of his arrest.

67. The failure to ensure that plaintiff was brought before a local criminal court within 24 hours of his arrest constituted a false arrest/false imprisonment, and trespass ab initio.

68. As a result plaintiff suffered loss of liberty.

69. By reason of the foregoing, plaintiff has been damaged in a sum that exceeds the

jurisdictional limits of all lower courts that might otherwise have jurisdiction herein.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Conversion)

70. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

71. At the time of his arrest on May 23, 2015, defendants seized over \$70,000 from inside his apartment but vouchered only \$36,158.00 and kept the rest for themselves.

72. At the time of the commencement of this action, and at all times hereinafter mentioned, plaintiff was and still is the owner and entitled to the immediate possession of the unreturned or unvouchered cash.

73. Subsequent thereto, demand was made of the defendants to deliver and return the money and defendants has refused to do so and have ever since wrongfully detained and converted the money and still detains it.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Attorneys'/Expert's Fees)

74. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

75. That the actions of defendants, heretofore described deprived plaintiff of rights, privileges, and immunities as guaranteed under the Fourth, Eighth, and Fourteenth Amendment of the United States Constitution, the New York State Constitution and the Civil Rights Acts, 42 U.S.C. §1983.

76. That the complained of conduct was either the result of an official policy or unofficial custom, including, but not limited to policies and customs concerning the hiring, training, supervision, retention and discipline of defendant, CITY OF NEW YORK's agents,

servants and/or employees, and those involving the detention, unlawful imprisonment, assault and battery and use of excessive force upon individuals, including plaintiff.

77. That in the event that plaintiff is successful in the prosecution of the aforesaid claim(s), plaintiff shall be a prevailing party within the meaning of 42 U.S.C. §1988 and be entitled to the recovery of said attorney and expert fees from the defendants.

WHEREFORE, plaintiff, LIONELL TOWNSEND, respectfully demands judgment against defendants, CITY OF NEW YORK, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE POLICE OFFICERS AND/OR DETECTIVES #s 1-10, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction; an award of reasonable attorney's fees, costs and disbursements of this action; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: New York, New York
May 2, 2016

Yours, etc.

ROTHSTEIN LAW PLLC
Attorneys for Plaintiff
11 Park Place, Suite 1100
New York, New York 10007
(212) 577-9797

Eric E. Rothstein
By: Eric E. Rothstein

VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

ERIC E. ROTHSTEIN, an attorney duly admitted to practice law in the State of New York, affirms the following to be true under penalty of perjury:

I am the attorney of record for the plaintiff in the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff is because plaintiff resides in a county other than the county I maintain my offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: books and records maintained at my office.

Dated: New York, New York
 May 2, 2016

ROTHSTEIN LAW PLLC
Attorneys for Plaintiff
11 Park Place, Suite 1100
New York, New York 10007
(212) 577-9797

By: Eric E. Rothstein
 Eric E. Rothstein

Index No.: _____/16

**SUPRMEME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

LIONELL TOWNSEND,

Plaintiff,

-against-

CITY OF NEW YORK, STEPHEN SAMUEL, MICHAEL RUBEIS, and JOHN/JANE DOE
POLICE OFFICERS AND/OR DETECTIVES #s 1-10,

Defendants.

SUMMONS AND COMPLAINT

ROTHSTEIN LAW PLLC
Attorneys for **Plaintiff**
11 Park Place, Suite 1100
New York, New York 10007
212-577-9797

CERTIFICATION BY ATTORNEY:

The undersigned, an attorney duly admitted to practice in the Courts of the State of New York,
shows:

I certify that, to the best of my knowledge, information and belief formed after an inquiry
reasonable under the circumstance, the presentation of the paper(s) listed above or contention(s)
herein are not frivolous as defined in §130-1.1(c).

Eric E. Rothstein

Eric E. Rothstein
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